STANDARD OPERATING PROCEDURE			P-4910	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED **12/01/17**	DATE REVISED	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES		
SUBJECT RESPONSE TO UNMANNED AIRCRAFT SYSTEMS (UAS)		CROSS REFERENCE		

I. Purpose:

The purpose of this policy is to establish guidelines for responding to and investigating unauthorized use of Small Unmanned Aircraft Systems (sUAS). The Federal Aviation Administration (FAA) retains the responsibility for enforcing federal aviation regulations.

II. Policy:

This policy is intended to assist members of the Sarpy County Sheriff's Office in understanding the legal framework that serves as the basis for FAA legal enforcement action against UAS and sUAS operators for unauthorized and/or unsafe UAS and sUAS operations. This policy is also to provide guidance regarding the role of law enforcement in deterring, detecting, and investigating unauthorized and/or unsafe UAS and sUAS operations.

III. Procedures:

A. Definitions:

1. Model Aircraft: A remote controlled aircraft used by hobbyists that is built, produced, manufactured, and operated for the purposes of sport, recreation, and/or competition.

2. Unmanned Aircraft (UA) or Unmanned Aerial Vehicle (UAV): An aircraft that is intended to navigate in the air without an on-board pilot. Other descriptions may be Remotely Piloted Aircraft (RPA), Remotely Operated Vehicle (ROV), or Drone.

3. Unmanned Aircraft System (UAS): A system that includes the necessary equipment, network, and personnel to control an unmanned aircraft.

4. Small Unmanned Aircraft Systems (sUAS): UAS systems that utilize UAVs weighing less than 55 pounds and are consistent with Federal Aviation Administration (FAA) regulations governing model aircraft.

B. **UAS and sUAS Public Use:** The general public, a wide variety of organizations, including private sector (e.g., commercial companies), non-governmental (e.g., volunteer organizations), and governmental entities (e.g., local agencies) demonstrate significant interest in UAS and sUAS. The increasing number of cases of unauthorized use of UAS is a serious concern for the FAA and many of its interagency partners.

1. Federal Aviation Regulations require safe flight of UAS and sUAS and have established minimum standards of operation as an "aircraft". FAA regulations prohibit any person from operating an aircraft in a careless or reckless manner so as to endanger the life or property of another.

2. All unmanned aircraft, including those operated exclusively as Model Aircraft, that weigh more than 55 pounds and are operated in the NAS must be registered with the FAA by their owner under either 14 C.F.R. Part 47 or Part 48.

3. The FAA will issue a unique registration number that begins with either an "N" or "FA." These numbers must be placed on the unmanned aircraft to be readily visible, or they may be inside a battery compartment or other place in the aircraft, provided no tools are needed to open the compartment. The registration number will be unique to the operator if operating strictly as a Model Aircraft, and unique to the aircraft if operating other than as a Model Aircraft. The operator of the UAS must carry a Certificate of Aircraft Registration in either paper or electronic format and make it available to Law Enforcement upon request.

4. Failure to register a UAS, including Model Aircraft, in accordance with these rules may result in regulatory and criminal sanctions. The FAA may assess civil penalties up to $27,500. Criminal penalties include fines of up to $250,000 and/or imprisonment for up to three years.

C. **Response to UAS or sUAS Complaints:** The FAA promotes voluntary compliance by educating individual UAS operators about how they can operate safely under current regulations and laws. The FAA also has a number of enforcement tools available including warning notices, letters of correction, and civil penalties. The FAA may take enforcement action against anyone who conducts an unauthorized UAS operation or operates a UAS in a way that endangers the safety of the National Airspace System. This authority is designed to protect users of the airspace as well as people and property on the ground. When called to a report or concern involving the general public or citizens operating a sUAS or UAS in Sarpy County, Deputies will gather the following information:

1. **Witness Identification and Interviews:** Identify potential witnesses and conduct initial interviews, documenting what they observed while the event is still fresh in their minds. Secure all information necessary for FAA safety inspectors to contact these witnesses in any subsequent FAA investigation.

2. **Identification of Operators**: Identify operators of the aircraft, and any participants or support personnel accompanying the operators. Obtain registration information from the device or from the operator to aid in identification and enforcement efforts by the FAA.

3. **Viewing and Recording the Location of the Event:** Officers are encouraged to take photographs of the UAS or sUAS in close proximity to the event, describing light, weather conditions, any damage or injuries, and the number and density of people on the service, particularly at public events or densely populated areas. Use landmarks as a way to describe lateral distances and altitude above the ground, structures, or people.

4. **Identifying Sensitive Locations, Events, or Activities:** UAS operations, including Model Aircraft flights, are generally prohibited within prohibited volumes of airspace. If officers are not aware of the airspace restrictions contact the nearest air traffic facility or flight service station for further information or visit http://tfr.faa.gov/tfr2/list.html for a graphic representation of TFRs locatable by state and effective dates.

5. **Notification:** Notification of an incident, accident or other suspected violation to the FAA Regional Operation Centers (ROC).

6. **Evidence Collection:** All UAS that weigh more than 0.55 pounds and are operated in the NAS must be registered with the FAA and must display identification numbers signifying FAA registration, and individuals operating a UAS must carry, in paper or electronic form, an FAA-issued aircraft registration certificate. Note that identification numbers may not be conspicuous from a distance because of the size and non-traditional configuration of some UAS. Officers can search the registration database for UAS assigned an “N-number” by using the “Look up N-numbers” search box on the FAA’s homepage: http://www.faa.govUAS that have been assigned an “FA-number” registration can be verified by contacting an FAA LEAP Special Agent.

D. Special Considerations

1. The guidance provided in this policy are related to the administrative process of the FAA, which would be the enforcement agency for UAS or sUAS violations. The role of the Sarpy County Sheriff’s Office in these cases is to document the circumstances and forward to the FAA. In the event probable cause exists for a

criminal investigation of investigation and follow-up as needed (ex: Unlawful Intrusion, Disturbing the Peace, Criminal Mischief etc.)

2. If a Deputy needs assistance in determining a FAA violation was made, or needs to forward a report regarding a possible violation, a Deputy may use these points of contact:

a) FAA Regional Operations Center (ROC): Center manned 24 hours a day, 7 days a week. Central Region ROC: (817) 222-5006, Email: 9-CSA-ROC@faa.gov

b) Law Enforcement Assistance Program (LEAP): Special agents available for LEO support. Kansas City, MO office: (816) 329-3717

3. A Deputy may contact a Sheriff's Office sUAS Pilot for guidance and questions regarding a complaint of possible UAS or sUAS FAA violations.